

IN THE CIRCUIT COURT OF BENTON COUNTY, MISSOURI

NSI 6, LLC,)
 Plaintiff,)
 v.) Case No. _____
 BENTON COUNTY, MISSOURI,)
Serve: Susan Porterfield, County Clerk)
316 Van Buren)
Warsaw, MO 65355)
 STEVE DALESKE, in his official capacity)
 as Presiding Commissioner of)
 Benton County, Missouri,)
Serve: 316 Van Buren Street)
Warsaw, MO 65355)
 SCOTTHARMS, in his official capacity as)
 North Side District Commissioner of)
 Benton County, Missouri, and)
Serve: 316 Van Buren Street)
Warsaw, MO 65355)
 LARRY BERRY, in his official capacity as)
 South Side District Commissioner of)
 Benton County, Missouri,)
Serve: 316 Van Buren Street)
Warsaw, MO 65355)
 Defendants.)

PETITION FOR DECLARATORY JUDGMENT AND INJUNCTIVE RELIEF

COMES NOW Plaintiff NSI 6, LLC, by and through its undersigned counsel, and for its causes of action against Defendants, states and avers as follows:

1. Plaintiff NSI 6, LLC ("Plaintiff") is a limited liability company organized and existing under the laws of the state of Missouri with its principal place of business at 1736 E. Sunshine Street, Suite 304, Springfield, Greene County, Missouri.

2. Plaintiff is the contract purchaser by assignment of certain real property located in unincorporated Benton County, Missouri, commonly identified as Parcel Number 142009000001006000, and legally described as follows:

THAT PART OF THE NORTHEAST QUARTER (NE¼) OF THE NORTHWEST QUARTER (NW¼) LYING WEST OF THE CENTER LINE OF HIGHWAY 65 ACQUIRED AT CIRCUIT COURT CASE NO. 10283 DATED MARCH 26, 1926, AND NORTH OF THE NORTH LINE OF U.S. ACCESS ROAD "A" ACQUIRED AT BOOK 285, PAGE 575, AND EAST OF THE EAST LINE OF HIGHWAY 65 RELOCATED ACQUIRED AT BOOK 331, PAGE 742; IN SECTION NINE (9), TOWNSHIP FORTY (40) NORTH, RANGE TWENTY-TWO (22) WEST OF THE FIFTH PRINCIPAL MERIDIAN IN BENTON COUNTY, MISSOURI.

(the "Property").

3. Plaintiff intends to construct and operate a data-center project on the Property (the "Project").

4. Defendant Benton County, Missouri (the "County"), is a political subdivision of the State of Missouri and may be served at the address set forth above.

5. Defendant Steve Daleske is the Presiding Commissioner of Benton County, is sued in his official capacity, and may be served at the address set forth above.

6. Defendant Scott Harms is the North Side District Commissioner of Benton County, is sued in his official capacity, and may be served at the address set forth above.

7. Defendant Larry Berry is the South Side District Commissioner of Benton County, is sued in his official capacity, and may be served at the address set forth above.

8. This Court has jurisdiction under Article V, Section 14 of the Missouri Constitution and Chapter 527, RSMo., because an actual and justiciable controversy exists concerning the validity and enforceability of the County Commission's August 10, 2026 Order and Ordinance imposing a temporary moratorium on data centers.

9. Venue is proper in Benton County under MO. REV. STAT. § 508.010 because the Property is located in Benton County, the challenged action was taken in Benton County, and Defendants reside or maintain their offices in Benton County.

10. On or about August 10, 2026, the Benton County Commission adopted an instrument titled “Order and Ordinance of County Commission of Benton County, Missouri—An Order and Ordinance Enacting a Temporary Moratorium on Data Centers Within Benton County, Missouri for Purposes of Due Diligence” (the “Order”). A true and accurate copy of the Order is attached hereto as Exhibit 1.

11. The Order became effective upon its passage and approval.

12. The Order applies to the unincorporated portions of Benton County.

13. The Order prohibits the construction, conversion, establishment, commencement of new operations, or expansion of any “Data Center,” as defined in the Order, and it prohibits issuance of permits related to those activities.

14. The Order applies not only to a primary data-center facility, but also broadly to purported supporting or ancillary facilities constructed, installed, operated, or used in connection with or to serve a Data Center, including off-site infrastructure and specified energy, water, wastewater, cooling, transmission, and generation facilities.

15. The Order defines “Data Center” based in part on use, building size, information-technology power capacity, operational characteristics, and energy consumption.

16. The Order delegates to the County Commission the determination whether future technology or uses are substantially similar to the enumerated activities.

17. The Order imposes a moratorium for six months from adoption and purports to permit an extension of up to six additional months by further order.

18. The Order states that a violation may result in County enforcement action, including injunctive relief, cease-and-desist orders, recovery of the County's costs and reasonable attorneys' fees, and other remedies at law or in equity.

19. The Order exempts certain existing facilities and projects for which an owner or developer had commenced specified on-site construction before the date of adoption.

20. The Order provides that site grading or site preparation alone does not constitute commencement of construction for that exemption.

21. The Order declares that it was adopted pursuant to, among other provisions, MO. REV. STAT. §§ 49.650 and 192.300.

22. Benton County has not adopted a county zoning plan, zoning ordinance, or zoning code under the applicable Missouri county-zoning enabling statutes.

23. The Order is not a merely incidental regulation of County property, affairs, or local government.

24. Instead, the Order selectively prohibits a defined category of land use and development throughout unincorporated Benton County, establishes use- and project-based classifications, regulates supporting uses and infrastructure, and provides for enforcement against nonconforming development.

25. In substance and effect, the Order is a zoning or land-use enactment that prohibits, restricts, and conditions defined uses of private property within a defined geographic area.

26. The Order presently and directly burdens Plaintiff's intended use and development of the Property.

27. At the time the County adopted the challenged Order, Plaintiff was actively engaged in development of the Project. Specifically, Plaintiff:

- (a) Began coordinating with utility providers and local stakeholders;
- (b) Entered into an agreement to acquire the Project site;
- (c) Retained professionals for customary pre-development planning, engineering, environmental, title, appraisal, and related due-diligence work; and
- (d) Made material arrangements and commitments concerning utilities, financing, site preparation, construction, and equipment; and
- (e) Plaintiff anticipated closing on the Property and beginning initial site work.

28. The challenged Order prevents, delays, and/or conditions Plaintiff's ability to proceed with the Project, including by prohibiting or restricting development activities that Plaintiff had undertaken in reliance on the legal framework existing before the Order's adoption.

29. Unless set aside, the Order will continue to delay the Project, impair Plaintiff's contractual and financial arrangements, and expose Plaintiff to further costs, uncertainty, and potential loss associated with the interruption of its planned development activities.

30. The Order has caused and will continue to cause Plaintiff immediate and irreparable harm, including delay and impairment of the Project, interference with Plaintiff's use and development of the Property, uncertainty in financing and contractual relationships, and other harms for which money damages are inadequate.

31. Plaintiff has no adequate remedy at law.

32. A declaration of the parties' rights and injunction against enforcement are necessary to resolve the present controversy.

33. To the extent Defendants assert that Plaintiff must pursue procedures created by or available under the Order before seeking relief, exhaustion is not required because Plaintiff

challenges the County's threshold statutory authority to enact and enforce the challenged land-use regulation *ab initio*.

COUNT I—DECLARATORY JUDGMENT

COMES NOW Plaintiff, by and through its undersigned counsel, and for Count I of its cause of action, states and avers as follows:

34. Plaintiff incorporates by reference Paragraphs 1 through 34 as though fully set forth herein.

35. Missouri counties possess only those powers granted by statute, necessarily implied from an express statutory grant, or indispensable to the exercise of an express statutory power.

36. A county has no inherent authority to enact land-use or zoning restrictions on private property.

37. County zoning authority, if any, exists only as delegated by the General Assembly and must be exercised in compliance with the applicable statutory enabling act.

38. MO. REV. STAT. §§ 49.650 and 192.300, RSMo., do not independently authorize the County to enact a countywide, use-based land-use prohibition that functions as zoning where the County has not adopted county zoning pursuant to the applicable enabling acts.

39. The Order regulates the location, establishment, expansion, and operation of a defined class of land use—data centers and broadly defined associated facilities—within unincorporated Benton County.

40. The Order's substance, operation, and effect—not its title—control its legal character.

41. Because the Order is zoning or a land-use enactment in substance, and because the County has not adopted county zoning as required to exercise that authority, the Order exceeds the County's delegated authority and is void and unenforceable.

42. An actual and justiciable controversy exists between Plaintiff and Defendants concerning whether the Order lawfully restricts Plaintiff's Project and use of the Property and whether Defendants may enforce the Order against Plaintiff.

43. Plaintiff has a legally protectable interest in the Property, the Project, and its right to use and develop the Property free from enforcement of an unlawful County enactment, and that interest is directly and presently affected by the Order.

44. The questions presented are definite, concrete, and ripe for judicial resolution because the County Commission adopted a final Order that is presently effective, expressly applies within unincorporated Benton County, prohibits the Project's contemplated use and development, and authorizes enforcement against a violation.

45. No contingent future event or further discretionary County action is necessary to determine the Order's validity as applied to Plaintiff's intended Project.

46. Plaintiff has no adequate alternative remedy and no adequate remedy at law.

47. Absent declaratory and injunctive relief, Plaintiff must either forgo or delay the Project, proceed under threat of enforcement, or submit to a regulatory regime that Plaintiff alleges is void.

48. Money damages cannot fully remedy the present interference with Plaintiff's property and development rights or resolve the parties' dispute over the Order's validity.

49. Plaintiff is entitled to a declaration under Chapter 527, RSMo., that:

- (a) The Order is a zoning or land-use enactment in substance;
- (b) The County lacked authority to adopt and enforce the Order in the absence of duly adopted county zoning authority under the applicable Missouri enabling acts;

(c) MO. REV. STAT. §§ 49.650 and 192.300 do not authorize the Order's use-based moratorium and attendant enforcement regime; and

(d) The Order is void, invalid, and unenforceable against Plaintiff, the Property, and the Project.

WHEREFORE, Plaintiff prays this Court for Judgment on Count I of its Petition against Defendants declaring that the Order is a zoning or land-use enactment; that the County lacked authority to adopt and enforce the Order in the absence of duly adopted county zoning authority under the applicable Missouri zoning enabling acts; that MO. REV. STAT. §§ 49.650 and 192.300 do not authorize the Order's use-based moratorium and attendant enforcement regime; and that the Order is void, invalid, and unenforceable against Plaintiff, the Property, and the Project; for its costs herein incurred and expended; and for such other and further relief as the Court deems just and proper in the premises.

COUNT II – DECLARATORY JUDGMENT

COMES NOW Plaintiff, by and through its undersigned counsel, and for Count II of its cause of action, in the alternative to Count I, states and avers as follows:

50. Plaintiff incorporates by reference Paragraphs 1 through 50 as though fully set forth herein.

51. This Count is plead in the alternative to Count I.

52. For purposes of this Count only, Plaintiff assumes, without conceding, that MO. REV. STAT. §§ 49.650 and/or 192.300 confer some authority upon Defendants to adopt an order addressing subjects within those statutes' express limits.

53. Even under that assumption, the Order exceeds the authority and restrictions established by MO. REV. STAT. §§ 49.650 and 192.300, and is invalid and unenforceable.

54. MO. REV. STAT. § 49.650.1 authorizes a non-charter county to adopt ordinances or resolutions relating to its property, affairs, and local government only on specifically enumerated subjects and only where the Missouri Constitution or state statutes have made no other provision.

55. The enumerated subjects in MO. REV. STAT. § 49.650.1 include, as relevant here: emergency management tied to the actual occurrence of a natural or man-made disaster of major proportions within the county that jeopardizes the safety and welfare of county inhabitants; nuisance abatement; storm-water control; and promotion of economic development for job-creation purposes.

56. The Order does not identify, and Defendants cannot establish, the actual occurrence within the County of a natural or man-made disaster of major proportions that jeopardized the safety and welfare of County inhabitants when the Order was adopted.

57. The Order's stated purpose is instead to give the County time to investigate possible future impacts of data centers, evaluate potential regulatory options, conduct due diligence, and consider possible agreements and economic-development incentives.

58. A generalized desire to study potential future development is not emergency management arising from a qualifying disaster under MO. REV. STAT. § 49.650.1(2).

59. The Order does not abate an existing nuisance; rather, it prospectively prohibits the construction, establishment, operation, and expansion of broadly defined data centers and associated facilities based on their category of use, including projects that have not created any actual interference with public rights or injury to the public.

60. The Order is also not a storm-water-control measure within MO. REV. STAT. § 49.650.1(4). Its prohibitions are directed at the existence and development of an entire class of

facilities and their ancillary infrastructure, whether or not a particular project creates a storm-water issue and without adopting standards directed to storm-water control.

61. The Order cannot be justified as promotion of economic development for job-creation purposes under MO. REV. STAT. § 49.650.1(5) as it prohibits and delays development of a defined category of potential job-producing facilities rather than promoting economic development for job creation.

62. Further, MO. REV. STAT. § 49.650.4 prohibits counties from adopting an ordinance, resolution, or regulation pursuant to MO. REV. STAT. § 49.650 governing railroad companies, telecommunications or wireless companies, public utilities, rural electric cooperatives, or municipal utilities.

63. The Order expressly regulates or purports to restrict supporting and ancillary facilities used to serve a data center, including substations, switchyards, transmission or distribution infrastructure, and water, wastewater, and energy-generating facilities and therefore exceeds the authority granted by MO. REV. STAT. § 49.650 to the extent it governs facilities or activities of the entities protected by MO. REV. STAT. § 49.650.4.

64. Moreover, MO. REV. STAT. § 49.650.1 applies only to county property, affairs, and local-government subjects for which no provision has been made in the Missouri Constitution or state statute.

65. To the extent Defendants rely upon MO. REV. STAT. § 192.300 as a state-law provision governing County public-health authority, MO. REV. STAT. § 49.650 does not independently expand that authority or supply a separate basis for the Order.

66. MO. REV. STAT. §192.300.1, RSMo., authorizes county commissions to make and promulgate orders, ordinances, rules, or regulations that tend to enhance public health and prevent

the entrance of infectious, contagious, communicable, or dangerous diseases into the county, subject to statutory conditions and restrictions.

67. The Order is not a public-health measure authorized by MO. REV. STAT. § 192.300.

68. The Order is a temporary, category-based land-use moratorium adopted to allow Defendants to study and evaluate potential future utility, noise, light, drainage, economic, and development impacts and possible future regulation or agreements.

69. Although the Order recites potential health-related concerns, it does not identify facts establishing that Plaintiff's Project creates a present public-health condition warranting the blanket prohibition, and it does not adopt standards directed to an identified public-health condition.

70. Instead, the Order prohibits the Project while Defendants decide whether, and how, data centers should be regulated in the future.

71. The Order's broad prohibition of a category of development and its associated facilities is not reasonably tailored to a demonstrated public-health objective within the scope of MO. REV. STAT. § 192.300, RSMo.

72. The Order instead functions as a moratorium on a defined land use.

73. MO. REV. STAT. § 192.300.4 specifies that violation of an order or ordinance adopted, promulgated, and published under the section is a misdemeanor subject to prosecution and fine as otherwise provided by law.

74. The Order purports to authorize additional County enforcement remedies, including cease-and-desist orders, recovery of the County's costs and reasonable attorneys' fees, and unspecified other remedies at law or in equity.

75. To the extent the Order purports to create or impose enforcement remedies not authorized by statute or other applicable law, those provisions are invalid.

76. The Order's invalid provisions are central to the regulatory scheme adopted by Defendants.

77. The Court should therefore declare the Order invalid in its entirety.

78. Alternatively, the Court should declare invalid and enjoin enforcement of each provision that exceeds the authority granted by MO. REV. STAT. §§ 49.650 and 192.300.

79. An actual controversy exists between Plaintiff and Defendants concerning the Order's validity and enforceability against Plaintiff, the Property, and the Project.

80. Plaintiff is entitled to a declaration under Chapter 527, RSMo., that, even if MO. REV. STAT. §§ 49.650 and/or 192.300 authorize Defendants to act within their respective statutory spheres, the Order exceeds those statutes' scope and restrictions and is void, invalid, and unenforceable against Plaintiff, the Property, and the Project.

WHEREFORE, Plaintiff prays this Court for Judgment on Count II of its Petition against Defendants, in the alternative to Count I of its Petition, declaring that the Order exceeds the statutory authority granted by MO. REV. STAT. §§ 49.650 and/or 192.300, and that the Order is void, invalid, and unenforceable against Plaintiff, the Property, and the Project; for its costs herein incurred and expended; and for such other and further relief as the Court deems just and proper in the premises.

COUNT III – INJUNCTIVE RELIEF

COMES NOW Plaintiff, by and through its undersigned counsel, and for Count III of its cause of action, states and avers as follows:

81. Plaintiff incorporates by reference Paragraphs 1 through 81 as though fully set forth herein.

82. Unless restrained, Defendants will enforce or threaten to enforce the Order against Plaintiff, the Property, and/or the Project, including by withholding permits, issuing directives, pursuing enforcement remedies, or otherwise preventing the Project from proceeding.

83. The Order is void and unenforceable for the reasons stated above.

84. Enforcement of a void County land-use enactment will cause Plaintiff immediate and irreparable injury for which there is no adequate remedy at law.

85. The threatened injury to Plaintiff outweighs any harm to Defendants from being prohibited from enforcing an Order adopted without legal authority.

86. The public interest favors enforcement of the limits the General Assembly placed on county authority and protection of private property from unauthorized governmental regulation.

87. Plaintiff is entitled to temporary, preliminary, and permanent injunctive relief prohibiting the County and the Commissioners, in their official capacities, and all persons acting in concert with or under their direction, from enforcing, applying, implementing, or threatening enforcement of the Order against Plaintiff, the Property, or the Project.

WHEREFORE, Plaintiff prays this Court for Judgment on Count III of its Petition against Defendants for temporary, preliminary, and permanent injunctive relief enjoining Benton County, the Commissioners in their official capacities, and all persons acting under their direction or in concert with them from enforcing, applying, implementing, or threatening to enforce the Order against Plaintiff, the Property, or the Project; for its costs herein incurred and expended; and for such other and further relief as the Court deems just and proper in the premises.

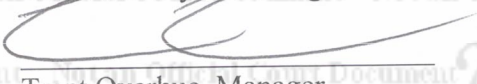
LOWTHER JOHNSON
Attorneys at Law, LLC

By: /s/ Megan N. C. Russell
Megan N. C. Russell
Missouri Bar Number 69235
901 St. Louis Street, 20th Floor
Springfield, MO 65806
Telephone: (417) 866-7777
Fax: (417) 866-1752
mrussell@lowtherjohnson.com
Attorney for Plaintiff

VERIFICATION

STATE OF MISSOURI)
) ss.
 COUNTY OF GREENE)

I, Trent Overhue being first duly sworn, state that I am the manager of NSI 6, LLC; that I have read the foregoing Petition; and that the factual matters stated therein are true and correct to the best of my knowledge, information, and belief.


 Trent Overhue, Manager
 NSI 6, LLC

Subscribed and sworn to before me this 11th day of August, 2026.


 Notary Public

My commission expires:

